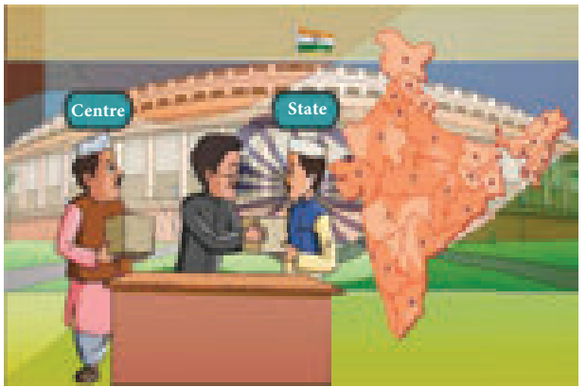
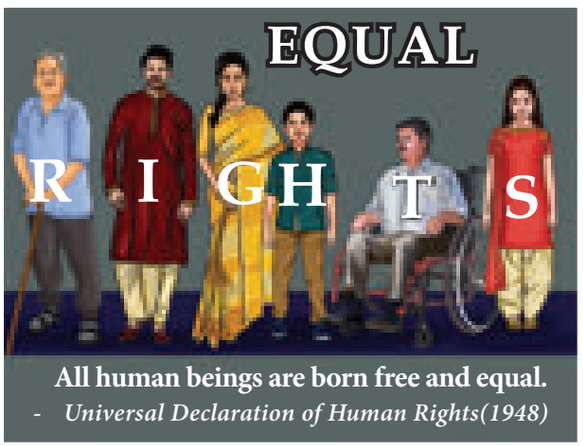
Rights Part and added it as Article 300A and therefore is considered as a legal right.





Fundamental rights provided in Part III of the Indian Constitution are judicially enforceable, thereby the individual can move the judiciary, if there is a violation on any of these rights. The right to move straight to the Supreme Court for the enforcement of fundamental rights has been guaranteed under Article 32 that is named as Right to Constitutional Remedies. Fundamental rights in India are, however, not absolute and rational restrictions can be imposed keeping in view of the security requirements of the state. It ensures political justice for the people.

"Right to Education -The Indian Constitution (Eighty - Sixth Amendment) Act, 2002 inserted Article 21-A in the Constitution of India to provide free and compulsory education to all children in the age group of six to fourteen years as a Fundamental Right in such a manner as the State may, by law, determine. The Right of Children to Free and Compulsory Education (RTE) Act, 2009, which represents the consequential legislation envisaged under Article 21-A, means that every child has a right to full-time elementary education of satisfactory and equitable quality in a formal school which satisfies certain essential norms and standards."

Fundamental Duties: The Fundamental Duties were added to the Indian Constitution through the 42nd Amendment. Part IVA of Indian Constitution defines the Fundamental duties. (51A) - It shall be the duty of every citizen of India -

(a) To abide by the Constitution and respect its ideals and institutions, the National Flag and the National Anthem;

(b) To cherish and follow the noble ideals which inspired our national struggle for freedom;

(c) To uphold and protect the sovereignty, unity, and integrity of India;

(d) To defend the country and render national service when called upon to do so;

(e) To promote harmony and the spirit of universal brotherhood amongst all the people of India transcending religious, linguistic and regional or sectional diversities; to renounce practices derogatory to the dignity of women;

12th_Political Science_Unit_1.indd 8 1/30/2020 3:12:05 PM